

NE.2 Permit Application Checklist

What to gather before you file — and the part of it that applies whether or not your county ever created a building permit.

Before you use this document

This is a process reference, not legal advice. Nebraska adopts one state building code and then makes enforcing it optional: the code is "the legally applicable code regardless of whether the county, city, or village has provided for the administration or enforcement" of it, no county or city has to issue a building permit, and no state agency may inspect a private house. What does not depend on any of that: the **state electrical inspection**, enforced at the power meter; the **energy code**, which you build to yourself; and the **septic and well filings**, which are made by the professional or by you. Confirm every item with the office that will actually handle your parcel before you rely on it. Fee figures were read from the agencies' own current forms and rule titles in September 2026 — the State Electrical Division's application revised March 27, 2026, and Title 124 Appendix A. No local building-permit fee is printed anywhere in this kit, because no state schedule exists and no local one could be verified.

WHAT APPLIES WHATEVER YOUR COUNTY DECIDED

NE.1 settled that the code binds your house whether or not anyone inspects it. **This page is the paperwork that exists either way.** Every item below applies on a parcel with no building department exactly as it applies in Lincoln.

The approvals that do not depend on a building department

What	When and why
Request for state electrical inspection	Before any wiring starts, unless your city or county runs its own certified program — then theirs. The one filing with a felony behind it. Gates the power connection
Septic general-permit certification and registration	Unless you are on public sewer. Made by the certified professional, not you. Constrains where the house can sit — the setback table is below. Do it first
Well registration and well log	If you are on a well. Within 60 days of completion, by the driller — or by you, if you drilled it
County zoning permit	In a zoned county, for "any nonfarm building" — required even where no building code exists, and it must show "sanitation, plumbing and sewage disposal"
Radon-resistant construction	Statewide by statute, checked by nobody outside a local program. Two exemptions, one of which is a county list

The approvals that do not depend on a building department

What	When and why
Nebraska Energy Code	No permit, no certificate, no inspection on request. You build to it; the values are below
Utility locate	Nebraska 811, free, "at least two full business days, but no more than ten business days, before commencing the excavation" (§ 76-2321(1))
Floodplain	Check the parcel on the FEMA Flood Map Service Center and ask the county or city whether a floodplain development permit applies. Local, and independent of the building code

THE CODE EDITIONS ACTUALLY IN FORCE

What binds a house under the state code

Trade	Code and edition	Cite
Residential building	2018 International Residential Code , "except section R313 and chapters 25 through 33" — sprinklers and the plumbing chapters are carved out	§ 71-6403(1)(b)
Plumbing	2018 Uniform Plumbing Code (IAPMO). Not the IPC and not the IRC plumbing chapters. The default in every city, village and county without its own plumbing ordinance	§ 71-6403(1)(d); § 18-132(4); § 23-172(4)
Mechanical, fuel gas	The 2018 IRC's own chapters 12–24, which were adopted with the rest of the IRC	§ 71-6403(1)(b)
Electrical	2023 National Electrical Code , effective August 1, 2024 — with five sections held at their 2017 text . See below	§ 81-2104(5)
Energy	2018 IECC , unamended, under a separate act. IRC chapter 11 mirrors it; a local government that deletes any of chapter 11 must notify DWEE within 30 days	§ 81-1609(9); § 81-1611; § 71-6406(4)
Radon	The statutory minimum standards, folded into the state building code. Less than IRC Appendix F — see below	§ 76-3504; § 71-6403(2)
Fire sprinklers	No statewide requirement for one- and two-family dwellings — R313 is excluded. But a city or county <i>may</i> adopt R313 and still "conform generally," and nothing in the Act forbids it. Check the local amendments	§ 71-6403(1)(b); § 71-6406(2)(c)(iii)

This table is the state's floor. A local government may adopt "any supplement, new edition, appendix" and still conform (§ 71-6406(2)(b)); it may not run an older edition (§ 71-6406(3)(a)). **Lincoln** (its own codes page, September 2026) is on the **2021 IBC, IRC, UPC, IMC, IFGC and IEBC**, the **2023 NEC** and the **2018 IECC**, each with local amendments. **Unincorporated Sarpy County** adopted the **2018 IBC, IRC, IMC, IFGC, IECC** and the **2018 IPC** — not the **UPC** — by Resolution 2024-150, effective June 4, 2024. Editions change only when the Legislature amends § 71-6403; the two-year local-adoption clock runs from that amendment. No 2021 or 2024

adoption bill had passed as of September 2026. Watch the Legislature, not an agency.

Confirm the editions this kit will not guess at for your jurisdiction

	Item	Date	Notes
☐	The residential and plumbing code editions my city or county reviews to (or "none adopted — state code applies"), and who told me: Editions _____ Source _____		
☐	Whether my jurisdiction adopted R313 (sprinklers) or any IRC appendix in its local amendments: Answer _____ Source _____		
☐	The frost depth, ground snow load and wind speed my jurisdiction fills into IRC Table R301.2 — no state table exists; get the figures in writing: Frost _____ Snow _____ Wind _____		

THE 2023 NEC — WITH FIVE SECTIONS HELD AT 2017

Nebraska is current on electrical and then reaches back two editions for five specific sections. The statute names them; a code book on its own will give the wrong answer on every one.

Neb. Rev. Stat. § 81-2104(5) — the edition, verbatim

The board "shall be governed by the minimum standards set forth in the National Electrical Code issued and adopted by the National Fire Protection Association beginning in the **2023 edition** of the National Electrical Code, Publication Number 70-2023, **except that the minimum standards set forth in the 2017 edition of the National Electrical Code shall apply for sections 210.8(A), 210.8(A)(3), 210.8(A)(5), 230.67(A), and 230.85.**"

The five sections — everything else is the 2023 NEC as published

Section	Subject (the NEC's own heading)	Nebraska rule
210.8(A)	Dwelling-unit GFCI protection — the list of locations	2017 text applies
210.8(A)(3)	Outdoor receptacles	2017 text applies
210.8(A)(5)	Basement receptacles	2017 text applies
230.67(A)	Surge-protective device at the service	2017 text applies
230.85	Emergency disconnect at the service	2017 text applies

*The Division's own notice: "Beginning August 1st, 2024, the Nebraska State Electrical Division will be adopting the NFPA 70 National Electric Code 2023." **Two things guides get wrong here.** There is **no AFCI** section on*

the list — arc-fault requirements are the 2023 text. And the carve-backs run toward the older, lighter requirement: read the 2017 book for those five sections and design the rest to 2023. **Inside a city or county with its own electrical program**, ask which edition its inspector reviews to; a local program must meet the state standard but may exceed it (§ 81-2125(1)). Lincoln reviews to the 2023 NEC.

THE ENERGY ANSWER — 2018 IECC, UNAMENDED, ZONE 5 EVERYWHERE

DWEE's fact sheet says it in one line: "The unamended 2018 IECC was adopted in Nebraska statewide on July 1, 2020." Its energy impact study adds the other fact you need: the climate zone map "place[s] the **entire state of Nebraska in a single climate zone (5)**." So there is one column of the table to read, and it is this one.

2018 IECC prescriptive values, climate zone 5 — DWEE's quick reference

Component	Requirement
Windows and doors (fenestration U-factor)	U-0.30
Skylights	U-0.55
Ceiling	R-49
Wood-frame wall	R-20 cavity, or R-13 cavity + R-5 continuous
Mass wall	R-13 continuous or R-17 cavity
Floor over unconditioned space	R-30
Basement wall	R-15 continuous or R-19 cavity
Slab on grade	R-10, to 2 ft
Crawl-space wall	R-15 continuous or R-19 cavity
Whole-house air leakage (blower door)	less than 3 air changes per hour at 50 pascals
Duct leakage	≤ 4 CFM per 100 sq ft; not required when all ducts are inside the thermal envelope
Mechanical ventilation	Whole-house system required
Load calculation	ACCA Manual J required

Values read from DWEE's Residential Energy Code Fact Sheet (2018 IECC) and its Energy Impact Study comparing the 2018 and 2021 IECC, at dwee.nebraska.gov, September 2026. DWEE's compliance paths are **REScheck** or the component table with no trade-offs. **There is no Nebraska energy certificate** — the IECC's own posted certificate (R401.3) is a code requirement, not a state form. The duty is yours (§ 81-1622(1)); the exposure is the two-year order (§ 81-1625). A city or county with its own energy code may inspect and may waive a requirement it finds not economically justified (§ 81-1618) — ask whether yours has one.

RADON-RESISTANT CONSTRUCTION — THE STATUTE, AND ITS TWO EXEMPTIONS

"Except as provided in section 76-3505, new construction built after September 1, 2019, in the State of Nebraska that is intended to be regularly occupied by people shall be built using radon resistant new construction" (§ 76-3504). A local code that omits it does not conform (§ 71-6406(3)(b)). **What the statute actually requires is shorter than the IRC appendix most guides quote:**

Neb. Rev. Stat. § 76-3504 — the minimum standards, in the statute's words

Sumps. A sump pit open to soil or terminating drain tile "shall be covered with a gasketed or otherwise sealed lid"; a sump used as the suction point "shall have a lid designed to accommodate the vent pipe"; a sump used as a floor drain "shall have a lid equipped with a trapped inlet."

Passive subslab depressurization, in basement or slab-on-grade buildings: "A minimum three-inch diameter ... ABS, PVC, or equivalent gas-tight pipe shall be embedded vertically into the subslab permeable material before the slab is cast. A 'T' fitting or equivalent method shall be used" — or the pipe is "inserted directly into an interior perimeter drain tile loop or through a sealed sump cover." It runs "up through the building floors" and terminates "at least twelve inches above the surface of the roof in a location at least ten feet away from any window or other opening into the conditioned spaces ... that is less than two feet below the exhaust point and ten feet from any window or other opening in adjoining or adjacent buildings." Where interior footings divide the subslab material, each area gets its own vent pipe. Every exposed vent pipe is labeled "Radon Reduction System" on each floor and in accessible attics.

Power source. "An electrical circuit terminated in an approved box shall be installed during construction in the attic or other anticipated location of vent pipe fans."

Not in the statute (verified absence): any aggregate depth under the slab, any vapor retarder, any soil-gas membrane. Those are IRC Appendix F practice and good practice — build them if you like — but no Nebraska statute adopts or excludes any IRC appendix, so they are law only where a local code says so. A contractor may convert the passive system to an active one, but "a radon mitigation specialist shall conduct any postinstallation testing" (§ 76-3506). Radon is **DHHS**; onsite wastewater is DWEE.

The two exemptions — one of them is a county list, and it moves

"New construction after September 1, 2019, shall not be required to use radon resistant new construction if (1) **the construction project utilizes the design of an architect or professional engineer** licensed under the Engineers and Architects Regulation Act, (2) the construction project is located in a county in which the average radon concentration is **less than two and seven-tenths picocuries per liter** of air as determined by the department pursuant to section 76-3507" (§ 76-3505). The third exemption is expressly "other than for any residential dwelling unit."

DHHS's determination to the Legislature dated January 1, 2024 (data October 2018 through September 2023): **77 of 93 counties exceed 2.7 pCi/L**. The fourteen below it: **Blaine** (one test), **Cherry, Dundy, Grant, Lincoln, Logan, Loup, McPherson, Merrick, Rock, Sheridan, Sioux, Thomas and Wheeler**. **Arthur** had no tests at all, and **Hall** averaged exactly 2.7 — which is not "less than," so the exemption does not reach it by its terms. The list is redetermined annually on rolling data; confirm your county on DHHS's radon data page before you rely on it.

THE ELECTRICAL REQUEST, ITS FEES AND ITS CLOCKS

The State Electrical Division calls it a permit; the statute calls it a **request for inspection**, due "at or before commencement," with the fees "due and payable ... at or before commencement of the installation" (§ 81-2126; § 81-2135(2)). The Division's online licensing and permitting system went live on **April 13, 2026**; homeowner permits in it "must be linked by NSED Office Staff once you have registered an account." The paper form is the **Application for State Electrical Inspection**, revised March 27, 2026, which is where these fees come from.

Fee schedule — Application for State Electrical Inspection, rev. 3-27-26

Item	Fee
NEW electrical service, 1–400 amps	\$75
Branch circuit or feeder, each (including extensions)	\$10
EXISTING service, regardless of size	\$50
Reconnect	\$75
Approval notice, if you want a written one	\$6
Homeowner minimum permit fee	\$100
Minimum permit fee, general	\$50
Supervisory fee, by statute (§ 81-2126)	50 cents
Late request — filed after the 14-day certified-mail notice (§ 81-2126)	\$250

*The Division announced that "As of April 1, 2026 the permit fees have been updated to reflect increases to some fees." Its May 2024 homeowner handout still works an example at \$35 and \$5 — **that example is stale**; the form governs. The form's own notice, in capitals: "INSPECTION FEES WILL NOT BE REFUNDED OR TRANSFERRED," and "FEES WILL NOT BE REFUNDED IF APPLICATION CONTAINS FALSE INFORMATION" — so fill it in carefully the first time.*

A worked example, so the arithmetic is not a surprise

A new house with a **200-amp service and 30 branch circuits**: \$75 for the new service plus $30 \times \$10 = \300 for the circuits — **\$375**, well above the \$100 homeowner minimum. Add \$6 if you want the written approval notice (buy it: it is the one third-party record of the wiring your house will ever have). A 200-amp service with fewer than three circuits would fall to the \$100 minimum, which no house does.

What the form asks for: the type of request (Contractor / **Homeowner** / Utility Reconnect), the type of installation (Single-Family Residence), a description and location, the owner, the installer and license, the **power supplier's name and address** — because the Division forwards a copy of a new-service permit to the utility — and the estimated completion date. As a homeowner you also sign the **homeowner verification** that you know the code and the Act.

Two clocks start at issue. Under State Electrical Board Rule 13, the permit is void if the work "has not been started within five (5) months" of issuance, or if no progress is made for five consecutive months, after fourteen days' written notice; an extension needs "clear and convincing proof of a practical hardship." And the inspector must be notified "within reasonable time" before any wiring is concealed (§ 81-2134(2)). NE.3 has the full sequence.

THE SEPTIC PACKAGE, IN ORDER

Onsite wastewater is DWEE's **Title 124**. A system "is to be permitted by the Department before any construction" (ch. 3 § 002), and there are two routes: a **general permit** for a conventional septic tank and subsurface leach field (also holding tanks, lagoons and mounds), which an owner is "authorized to construct ... under ... if they meet the conditions of the permit" (ch. 3 § 003.06); or an individual **construction and operating permit** whose plans "will be prepared and properly stamped and signed by a Professional Engineer" (ch. 3 § 004.03). A normal house rides the general permit.

The sequence, and what each step actually is

	Step	What the rule says
0	Choose the professional	You may not site, lay out or build the system yourself; a Master or Journeyman Installer, engineer or environmental health specialist must be "physically present at the site" (§ 81-15,248(1); ch. 9 § 004)
1	Soil evaluation and percolation test	Perc tests only by an engineer, environmental health specialist, or certified Inspector, Soil Evaluator, Master or Journeyman Installer (ch. 2 § 012.01). Soil is unsuitable "if the percolation rate is faster than five minutes per inch or is slower than 60 minutes per inch" — faster is rescued by a 12-inch loamy-sand liner; slower is off the general permit and needs an engineer (GTS220000 § III.J)
2	Site it	Seasonal high groundwater "at least four feet below the bottom of the infiltrative surface" (§ III.C); no absorption system in fill except sand fill (§ III.J.4); a reserve area for a replacement system, carrying all the setbacks (ch. 2 § 008). The setback table is on the next page

The sequence, and what each step actually is

	Step	What the rule says
3	General-permit coverage	Coverage "is granted to an owner of a dwelling" who submits, with the registration, the professional's signed certification, "an appropriately scaled drawing of the onsite wastewater treatment system" and the percolation or seepage data (GTS220000 § II.A). A pressure-dosed system is not covered (§ III.K.21)
4	Registration	By the professional, "within forty-five days of completion" (§ 81-15,248(2)). \$140 registration; late \$150 at 46-90 days, \$450 at 91 or more (App. A). The professional "will provide a copy of the system registration form to the system owner" (ch. 10 § 004) — get it

*Title 124, Rules and Regulations for the Design, Operation and Maintenance of Onsite Wastewater Treatment Systems, effective June 27, 2022, and the general permit GTS220000 (septic tank and subsurface leach field), read from DWEE's Title 124 booklet, form 23-017 ver. 02.2026. An individual construction permit application is **\$450** (App. A). Cesspools, dry wells, leaching pits and seepage pits are prohibited (ch. 2 § 003). Civil penalty for a violation: up to **\$10,000** per violation per day (§ 81-15,253). DWEE may delegate the program to a county or city with a program "at least as stringent" (§ 81-15,248(3)), and "Nothing in this Title will prevent more stringent local requirements" (ch. 2 § 014) — **every number here is a state floor.***

Setbacks in feet — Title 124 ch. 2 Table 2.1

From	Tank	Absorption field	Lagoon
Private drinking-water well	50	100	100
Public community well	500	500	1,000
Surface water	50	50	50
Pressure water main or service line, suction line	10	25	25
Property line	5	5	50
Driveway, parking, sidewalk, impermeable surface	5	5	50
Your foundation, Class 2 — house sits <i>higher</i> than the system (the default)	10	10	100
Your foundation, Class 1 — any part of the basement, footing or slab sits <i>lower</i> than the system	15	30	100
Class 3 — slab on grade, not living quarters	7	10	50
Neighbor's foundation, Class 1 / 2 / 3	25 / 20 / 15	40 / 30 / 20	200 / 200 / 100
Horizontal closed-loop geothermal well	25	25	25

The row that moves the house is the foundation class. Table 2.1's footnote: Class 1 is "a basement, a non-basement footing, swimming pool, or slab-on-grade living quarters where any portion ... is lower in elevation than the onsite wastewater treatment system component"; Class 2 is the same structures higher in elevation. Put the drainfield uphill of a walk-out basement and the distance triples from 10 to 30 feet. "A person

is not to construct or relocate a foundation, well, water line, surface water feature, or property line within the setback distances listed in Table 2.1" (ch. 2 § 011) — a variance needs an engineer's letter. Between trenches, and between tank and nearest trench, undisturbed soil of 4 / 6 / 10 feet at slopes under 10% / 10-20% / over 20% (GTS220000 § III.K.9).

Sizing, from the general permit — so you can check the professional's arithmetic

Design flow is "100 gallons per day plus 100 gallons per day per bedroom" (Table 1): a 3-bedroom house is **400 gpd**, 4 bedrooms 500, 5 bedrooms 600. A garage floor drain adds at least 100 gpd (§ III.L.3). Over 1,000 gpd is off the general permit.

Septic tank (Table 3; "in no case ... less than 1,000" gallons): at 400 gpd, **1,000** gallons with no grinder pump and no large tub; **1,250** with one of them; **1,500** with both. "Large capacity tub" is a working volume over 50 gallons. At 500 gpd the three figures are 1,250 / 1,500 / 1,750; at 600 gpd, 1,500 / 1,750 / 2,000. A single-compartment tank fed by a pump is upsized 50% (§ III.H.3).

Absorption trench bottom area (Table 5), at 400 gpd: **495 sq ft** at a perc rate over 5 to 10 minutes per inch; **630** at 10-20; **750** at 20-30; **825** at 30-40; **990** at 40-50; **1,050** at 50-60; over 60 is "Ineligible for general permit." Gravity trenches are limited to 150 ft (§ III.K.5), and beds carry a multiplier. Trench bottoms stay 4 ft above seasonal high groundwater.

IF YOU ARE ON A WELL

The well package

	What the rule requires	Cite
You may drill it yourself	"An individual may construct a water well or install and repair pumps and pumping equipment onsite on land owned by him or her and used by him or her for farming, ranching, or agricultural purposes or as his or her place of abode." The exemption is from the <i>license</i> : "Any person constructing a water well ... shall do such work in accordance with the rules and regulations"	§ 46-1233(1)-(2)
Registration, within 60 days	Every well "shall be registered with the department ... within sixty days after completion," filed by the licensed driller "or the owner of the water well if the owner constructed the water well," with the well-log information. Fee: \$200 plus the board's \$25-\$40 for a well designed to pump 50 gpm or less	§ 46-602(1); § 46-606(1); § 46-1224(3)
The well log	"Any owner of a water well or a licensed water well contractor who engages in ... constructing a water well shall keep and maintain an accurate well log" — eighteen listed items. If you drill, you keep it	§ 46-1241

The well package

	What the rule requires	Cite
The construction standards	DWEE Title 134 ch. 4 , effective June 28, 2026 — "Regulations Governing Water Well Construction, Pump Installation and Water Well Decommissioning Standards." It replaced DHHS Title 178 ch. 12; do not use a 178 copy	Title 134 ch. 4
A variance, if Chart 1 cannot be met	A written request "at least 10 days prior" to construction, with "a scaled map showing the location of the well in relation to property lines, structures, utilities, and contamination sources"	Title 134 ch. 4 § 012.01
Pump wiring	A licensed pump installation contractor may wire "pumps and pumping equipment at a water well location to the first control" without an electrical license. Beyond the first control it is electrical work	§ 81-2121(7)

Minimum distance from a domestic well, in feet — Title 134 ch. 4 Chart 1 (2026)

To	Feet
Any septic lateral field (soil absorption system)	100
Any septic tank	50
Wastewater lagoon, privy, cesspool, subsurface disposal system	100
Pressurized sanitary sewer line, or a non-watertight one	50
Watertight sanitary sewer line; storm sewer	10
Animal-waste structure; feeding-operation holding pens	100
Storm water way; frost-proof hydrant; well pit; any depression that could retain stagnant water	10

The septic rule (Table 2.1) and the well rule (Chart 1) agree: 100 feet from drainfield to well, 50 from tank.

Chart 2 lets a driller go to 50–100 ft from a lateral field (25–50 from a tank) only where Chart 1 cannot be met, with prior written DWEE approval, full-length chip-bentonite grout and protective silts or clays; below that, a declaratory ruling. **Verified absence:** Title 134 ch. 4 has **no well-to-property-line rule** for a domestic well — the 600 and 1,000-foot rows apply only to irrigation and industrial wells — and no surface-water row. "These are minimum requirements. Local requirements may be more stringent" (ch. 4 § 001); ask your Natural Resources District whether it requires its own permit for a domestic well.

PERMIT RECORD — FILL THIS IN AS EACH ONE ISSUES

Every approval on this build

	Item	Date	Notes
☐	Request for state (or local) electrical inspection filed before wiring began, with the homeowner verification: Permit number _____ Filed _____ Fee paid _____		
☐	Certificate to the power supplier that inspection was requested and the installation is safe to energize: Utility _____ Date filed _____		
☐	Septic professional engaged — name, certificate class and number: Name _____ Certificate _____		
☐	Septic general-permit coverage — scaled drawing and perc data submitted; or the individual permit number if engineered: Reference _____ Date _____		
☐	Septic system registration — copy received from the professional (due within 45 days of completion): Registration _____ Date received _____		
☐	Well registration filed within 60 days, and the well log kept: Registration _____ Filed _____ Driller _____		
☐	County zoning permit (or written confirmation that none is required): Number _____ Issued _____ Office _____		

Every approval on this build

	Item	Date	Notes
☐	Local building permit , if one exists where I am building: Number _____ Issued _____ Expires _____		
☐	Radon — my county is / is not on the DHHS under-2.7 list, and the passive system is / is not required: County status _____ Date checked _____		
☐	Energy — the REScheck report or component table I built to, and the posted certificate: Path _____ Date _____		
☐	Floodplain determination — in or out of the mapped hazard area: Result _____ Who confirmed _____		
☐	Driveway or culvert permit — which road authority: Permit _____ Authority _____		
☐	911 address assigned: Address _____ Date _____		
☐	Nebraska 811 locate requested at least two full business days before excavation: Ticket _____ Date _____		

Every statute cited here is free to read at one address you can type:

nebraskalegislature.gov/laws/statutes.php?statute=81-2121 — swap in any section number, comma included (81-15,248). Each page ends with a **Source** line naming every session law that touched it and, after a recent change, an **Effective Date** line. Read that line before you rely on the section. The rules are PDFs: Title 124 (septic) and Title 134 (wells) at **dwee.nebraska.gov**, the electrical Board rules at **electrical.nebraska.gov/statutes-rules**. **One warning:** the Board's rules PDF (April 2024) still calls an unfiled request for inspection a misdemeanor. Since July 18, 2026 the statute says felony. The statute wins. Read September 2026.